



CHAPTER cxliv.

An Act to constitute and incorporate a Joint Water Board consisting of representatives from the Councils of the respective boroughs of Bury Haslingden and Rawtenstall and the urban districts of Radcliffe Ramsbottom Little Lever Whitefield and Tottington and the rural district of Bury all in the county palatine of Lancaster and to transfer to and vest in such board the water undertaking of the Bury Corporation and for other purposes.

A.D. 1900.

[30th July 1900.]

WHEREAS the mayor aldermen and burgesses of the county borough of Bury (in this Act called "the Bury Corporation") are under and by virtue of the Acts of Parliament set forth in the First Schedule hereto the owners of a water undertaking and are empowered to supply water within the respective boroughs of Bury Haslingden and Rawtenstall and the urban districts of Radcliffe Ramsbottom Little Lever Whitefield Tottington and Prestwich and the rural district of Bury and other places (herein-after referred to as "the Bury water supply limits"):

And whereas by an agreement dated the eleventh day of April one thousand eight hundred and ninety-nine ratified and confirmed by the Bury Corporation Water Act 1899 and set forth in the schedule to that Act it was mutually agreed by the Bury Corporation and the other local authorities parties thereto that the supply of water in the Bury water supply limits should be under the control of a public authority and for that purpose a board should be constituted and incorporated as by this Act provided representing the Bury Corporation the mayor aldermen and burgesses of the borough of Haslingden (in this Act called "the Haslingden Corporation") the mayor aldermen and burgesses of the borough of Rawtenstall (in this Act called "the Rawtenstall Corporation") the urban district council of Radcliffe (in this Act called "the Radcliffe

A.D. 1900. Council") the urban district council of Ramsbottom (in this Act called "the Ramsbottom Council") the urban district council of Little Lever (in this Act called "the Little Lever Council") the urban district council of Whitefield (in this Act called "the Whitefield Council") and the rural district council of Bury (in this Act called "the Bury Rural Council") and that the water undertaking with the exception of the Chesham Reservoir of the Bury Corporation with all the rights powers duties obligations and liabilities of the Bury Corporation with respect thereto should be transferred to and vested in such Board accordingly upon and subject nevertheless to the terms conditions and provisions in this Act contained :

And whereas a portion of the district of the Bury Rural Council was at or about the date of the said agreement constituted an urban district and the council of such urban district (in this Act referred to as "the Tottington Council") whose district is within the Bury water supply limits has agreed to the formation of the Board :

And whereas out of the sum of Bury Corporation Redeemable Stock (three pounds ten shillings per centum) created by the Bury Corporation and now unredeemed and outstanding it has been ascertained and agreed that ninety thousand pounds part of the same stock has been issued and is now owing on account of the water undertaking and it has been further agreed that from the thirty-first day of March one thousand nine hundred a sum of ninety thousand pounds part of the same stock shall be taken over by the Board and that the Bury Corporation shall subject to the provisions of this Act be relieved as and from the thirty-first day of March one thousand nine hundred from liability for payment of the said sum of ninety thousand pounds stock and from all dividends accruing thereon :

And whereas it has been arranged that the said sum of ninety thousand pounds stock allocated to the water undertaking as aforesaid shall be that part of Bury Corporation Redeemable Stock which is numbered as set forth in the Third Schedule to this Act in the corporation stock register of the Bury Corporation (hereinafter referred to as "the said sum of ninety thousand pounds stock") and the respective holders of such stock who are all sui juris have consented to the transfer of the same to the Board :

And whereas particulars of the annuities and securities for money borrowed by the Bury Corporation in addition to the issue of the said sum of ninety thousand pounds stock for the purpose of the water undertaking and outstanding on the thirty-first day of March one thousand nine hundred and of the unexhausted

borrowing powers of the Bury Corporation in respect of the water undertaking on the same date are set forth in the Fourth Schedule to this Act: A.D. 1900.

And whereas it is expedient that the further powers contained in this Act should be conferred on the Board:

And whereas it is expedient that the Board should be authorised to borrow money for the purposes of this Act:

And whereas the objects aforesaid cannot be attained without the authority of Parliament:

And whereas an absolute majority of the whole number of the councils of the respective boroughs of Bury and Haslingden and of the respective urban district councils of Radcliffe Ramsbottom Little Lever Whitefield and Tottington at meetings of those respective bodies held on the twenty-third day of November one thousand eight hundred and ninety-nine after ten clear days' notice by public advertisement of such meetings respectively and of the purposes thereof in the Bury Times and the Bury Guardian being local newspapers published or circulating in the said respective boroughs and districts such notices being in addition to the ordinary notices required for summoning such meetings resolved that it was expedient to promote the Bill for this Act:

And whereas such resolutions of the councils of the said respective boroughs and district councils were respectively published twice in the said Bury Times and the Bury Guardian being local newspapers published or circulating in the same respective boroughs and the respective districts of the said several district councils and all the said resolutions have received the approval of the Local Government Board:

And whereas the propriety of the promotion of the Bill for this Act was confirmed by an absolute majority of the whole number of the council of the said respective boroughs of Bury and Haslingden and of the said respective urban district councils at further special meetings held in pursuance of similar notices on the twenty-ninth day of January and the first day of February respectively one thousand nine hundred being in each case not less than fourteen days after the deposit of the Bill in Parliament:

And whereas the owners and ratepayers of the said respective boroughs of Bury and Haslingden and of the said respective urban districts by resolution in the manner provided in the Third Schedule of the Public Health Act 1875 have consented to the promotion of the Bill for this Act:

May it therefore please Your Majesty that it may be enacted and be it enacted by the Queen's most Excellent Majesty by and

A.D. 1900. with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

: PRELIMINARY.

Short title.

1. This Act may be cited as the Bury and District Water (Transfer) Act 1900.

Commis-
sioners
Clauses
Act incor-
porated.

2. The following provisions of the Commissioners Clauses Act 1847 are (except where inconsistent with or expressly varied by this Act) incorporated with and form part of this Act (that is to say):—

With respect to the meetings and other proceedings of the commissioners and their liabilities (except sections 45 46 48 and 52);

With respect to the contracts to be entered into and the deeds to be executed by the commissioners;

With respect to the liabilities of the commissioners and to legal proceedings by or against the commissioners;

With respect to the appointment and accountability of the officers of the commissioners;

With respect to the making of byelaws;

With respect to giving notices and orders;

With respect to the recovery of damages not specially provided for and of penalties and to the determination of any other matter referred to justices; and

With respect to access to the special Act.

Interpreta-
tion.

3. The several words and expressions to which by the Commissioners Clauses Act 1847 meanings are assigned shall in this Act have the same respective meanings unless there is something in the subject or context repugnant to such construction Provided that in the provisions of that Act incorporated with this Act for the purposes of this Act—

“The commissioners” means the Board:

And in this Act unless the context otherwise requires—

“The Board” means the Bury and District Joint Water Board incorporated by this Act;

“Constituent authority” means the corporation of Bury the corporation of Haslingden the corporation of Rawtenstall acting by their respective councils or any one of the urban district councils of Radcliffe Ramsbottom Little Lever Whitefield and Tottington or the Bury Rural Council as the case may be;

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“Clerk” means the clerk to the Board;

“The Bury general rate” and “the general fund” mean the rate and fund authorised to be levied raised and formed under and by virtue of the Bury Improvement Act 1846;

“The water undertaking” means the water undertaking of the Bury Corporation as authorised and existing on the thirty-first day of March one thousand nine hundred and includes all lands buildings hereditaments moneys and other property real and personal (including things in action) and all powers rights and privileges belonging to vested in or enjoyed by the Bury Corporation or any person on their behalf exclusively for the purposes of or as part of the said undertaking except the Chesham Reservoir;

“The scheduled Acts” means the Acts enumerated in the First Schedule to this Act;

“Statutory security” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock stock or other security (not being annuities rentcharges or securities transferable by delivery) authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 of the Local Loans Act 1875 other than securities of the Board or of any constituent authority.

4. The limits of this Act for the supply of water by the Board shall after the transfer include the boroughs of Bury Rawtenstall and Haslingden the urban districts of Ramsbottom Radcliffe Whitefield Prestwich Little Lever and Tottington and the townships parishes or places of Hapton Dunnockshaw Walmersley-cum-Shuttleworth Outwood and so much of the parish or place of Unsworth as was formerly in the township of Pilkington and also so much of the parish or place of Ainsworth as originally formed part of the township parish or place of Elton all in the county palatine of Lancaster except so much of the said borough of Rawtenstall as lies on the easterly side of a line commencing at the point where the Whitewell Brook falls into the River Irwell and running up the said brook to Baltic Bridge near Waterfoot and running thence in a north-easterly direction to the south end of Siss Clough Lane thence along the centre of Siss Clough Lane Edge Side Lane and Lumb Lane to the junction of the said last-mentioned lane with the road leading from Waterfoot to Burnley formerly known as the Waterfoot and Hitchen Dams branch of the Haslingden and

Limits of
supply.

A.D. 1900. Todmorden turnpike road near Lumb Mill thence along the centre of the said road to the boundary formerly dividing the townships of Newchurch and Higher Booths at Chapel Bridge and thence along such last-mentioned township boundary to the junction with the boundary formerly dividing the townships of Newchurch and Cliviger and also except such portions of the said borough of Bury as lie on the easterly and south-easterly sides of the boundary of the township of Bury.

CONSTITUTION OF THE BOARD.

Incorporation of Board.

5. For the purpose of carrying this Act into execution there shall be a joint Board of such members constituted and appointed as by this Act provided and they and their successors from time to time appointed and acting in pursuance of this Act shall be a body corporate under the name and style of "The Bury and District Joint Water Board" with perpetual succession and a common seal and with power to sue and be sued and to purchase take hold lease and dispose of lands and other property for the purposes of this Act and with all the other powers and privileges of a body corporate.

Constitution of Board.

6. The constitution of the Board shall be as follows :—

Nine members to be appointed by the council of the borough of Bury ;

Two members to be appointed by the council of the borough of Haslingden ;

Two members to be appointed by the council of the borough of Rawtenstall ;

Four members to be appointed by the Radcliffe Council ;

Two members to be appointed by the Ramsbottom Council ;

One member to be appointed by the Little Lever Council ;

One member to be appointed by the Whitefield Council ;

One member to be appointed by the Tottington Council ; and

One member to be appointed by the Bury Rural Council.

Appointment of members.

7.—(1) The first appointment of members of the Board by each constituent authority shall take place at a meeting of the constituent authority to be held within six weeks from the passing of this Act or within such further time as the Local Government Board shall by Order allow and the members so appointed shall subject to the provisions of this Act continue in office till the second Wednesday in the month of December one thousand nine hundred and three.

(2) Each constituent authority shall at a meeting of their body held within twenty-eight days before the second Wednesday in the month of December one thousand nine hundred and three appoint

the number of members of the Board whom they are by this Act authorised to appoint to hold office till the second Wednesday in the month of December one thousand nine hundred and six and so on from time to time at the expiration of every successive period of three years. A.D. 1900.

8. If any constituent authority fail to appoint first members of the Board as by this Act provided it shall be competent nevertheless for the other members of the Board to carry this Act into execution and if any constituent authority fail to appoint members of the Board at any subsequent period of three years the then existing members of the Board representing such authority shall continue in office till their successors are appointed. Provisions on failure to appoint members.

9. A person shall not be qualified to be a member of the Board unless he is a member of the council of the constituent authority by which he is appointed. Qualification of members of Board.

10. If a member of the Board appointed by a constituent authority ceases to be a member of such constituent authority or becomes disqualified he shall also cease to be a member of the Board but such disqualification shall not apply if he only goes out of office by reason of the expiration of the term for which he was elected a member of such constituent authority and is thereupon re-elected. Members to be disqualified on ceasing to be members of constituent authority.

11. If any member of the Board dies or resigns or is disqualified or ceases to be a member of the Board the constituent authority whom he represented may if they think fit at any time after the happening of such vacancy appoint a member of the Board in his place from amongst themselves and every member of the Board so appointed shall continue in office only so long as the person in whose place he is appointed would have been entitled to continue in office. Occasional vacancies.

12. Whenever an appointment of a member of the Board has been made the clerk to the constituent authority by whom the appointment has been made shall by writing under his hand certify the appointment to the Board and shall forthwith on the first appointment transmit the certificate to the town clerk of the borough of Bury and on every subsequent appointment to the clerk to the Board. Appointment of members to be certified to Board.

13. At their first meeting and subsequently at their annual meeting in each year the Board shall appoint one of their number to be chairman and another to be vice-chairman of the Board for Chairman and vice-chairman.

A.D. 1900. the ensuing year Provided that the chairman of the Board for a period of five years from the first meeting of the Board shall be appointed from the Bury representatives and the vice-chairman for the same period shall be appointed from members of the Board who are not Bury representatives.

As to convening meetings.

14. The first meeting of the Board shall be convened by the town clerk of the borough of Bury and shall be held at the Waterworks Offices Parsons Lane Bury on the second Wednesday in September one thousand nine hundred at eleven of the clock in the morning unless some other day or time shall be appointed for the purpose by the Local Government Board and then on such day and at such time as shall be so appointed The Board shall hold their meetings at the said offices unless and until other offices in Bury shall be hereafter provided.

Meetings and proceedings of Board.

15. The meetings of the Board shall be held and the proceedings thereat shall be conducted in accordance with the rules as to meetings and proceedings contained in the Second Schedule to this Act.

Minutes of proceedings &c.

16.—(1) A minute of proceedings at a meeting of the Board or of a committee signed at the same or at the next ensuing meeting by the chairman of the meeting at which the minute is signed shall be received in evidence without further proof.

(2) Until the contrary is proved every meeting of the Board or of a committee whereof a minute has been so made shall be deemed to have been duly convened and held and all the members of the meeting shall be deemed to have been duly qualified and where the proceedings are proceedings of a committee the committee shall be deemed to have been duly constituted and to have had power to deal with the matters referred to in the minutes.

Members not to be interested in contracts &c.

17. A member of the Board shall not be interested either in his own name or in the name of any other person in any contract entered into or work done for the Board and shall not derive any profit or emolument whatsoever from the funds of the Board This provision shall not extend to any interest which a member of the Board may have by reason of his being a shareholder of a company which has entered into any contract with or done any work for the Board but he shall not vote in respect of any such contract or work.

Resignation of member.

18. A member of the Board may resign his office by notifying in writing his intention so to do to the clerk to the Board for the time being.

19. Any act of the Board or of any of the members thereof shall not be invalidated or be illegal by reason of any irregularity in the appointment of any member of the Board or by reason of any person not qualified or ceasing to be qualified acting as a member of the Board or by reason of any failure or omission on any occasion on the part of any constituent authority to appoint any member of the Board or by reason of any other irregularity error failure or omission in or about any appointment or in or about any matter preliminary or incidental thereto.

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Error
failure &c.
not to invali-
date acts
done &c.

20. If at any time any dispute or difference arises between the Board and any of the constituent authorities respecting any matters arising under the provisions of this Act or relating to the matters or any of them referred to in paragraph 22 of the said agreement dated the eleventh day of April one thousand eight hundred and ninety-nine the same shall be referred to and be settled by the Local Government Board or by an arbitrator appointed by them and the Local Government Board or arbitrator as the case may be shall have an absolute discretion both as to the matters in dispute or difference and as to the costs of such reference.

Arbitration.

21. As and from the first meeting of the Board the water undertaking shall by virtue of this Act be transferred to and vested in the Board subject to all debts and liabilities affecting the same on the thirty-first day of March one thousand nine hundred and in order to effect the financial adjustment between the Bury Corporation and the Board the accounts of the Bury Corporation in respect of the water undertaking shall be made up to the thirty-first day of March one thousand nine hundred and from that date the liability of the Bury Corporation in respect of the water undertaking shall cease but the Bury Corporation shall and they are hereby empowered to carry on and manage the water undertaking with and subject to the like powers as heretofore for and on behalf of and at the risk of the Board from the said thirty-first day of March one thousand nine hundred until the first meeting of the Board.

Vesting of
water under-
taking in
Board.

22. All agreements awards bonds conveyances contracts covenants deeds leases and other acts and things made executed or done in relation to the water undertaking by or with the Bury Corporation or any person on their behalf respectively and in force on the thirty-first day of March one thousand nine hundred shall continue valid and effectual for all purposes in favour of against or with reference to the Board as may be required in each case.

Saving for
contracts
deeds &c.

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With re-
spect to the
Chesham
Reservoir.

23. The Chesham Reservoir situated at Bury shall remain the property of the Bury Corporation and that corporation alone shall continue liable to pay all rent and charges and observe and perform all covenants and conditions subject to which such reservoir is held.

Application
of provisions
of scheduled
Acts.

24. The provisions of the scheduled Acts and of any other local Act which at the date of the first meeting of the Board are in force and apply to or affect the water undertaking in the hands of the Bury Corporation shall continue to apply with the substitution of the Board for the Bury Corporation except so far as the scheduled Acts are inconsistent with this Act or as provided for in this Act.

Actions &c.
not to abate.

25. All actions arbitrations prosecutions or other proceedings or cause of proceeding pending or existing at the date of the first meeting of the Board by with or against or in favour of the Bury Corporation in relation to the water undertaking may be continued or enforced and carried on by with against or in favour of the Board as may be required in each case.

Byelaws &c.
to continue
in force
until repealed
or altered.

26. All byelaws rules and regulations in force at the date of the first meeting of the Board and relating to the water undertaking shall continue in force until byelaws rules and regulations are made by the Board under the provisions of this Act or the scheduled Acts and thereupon the existing byelaws rules and regulations shall be repealed.

Books &c.
to be re-
ceivable in
evidence.

27. All books and documents which if this Act had not passed would have been receivable in evidence shall be receivable in evidence as if this Act had not passed.

As to charges
on water
undertaking.

28. Except as herein-after provided all annuities and all mortgages and the said sum of ninety thousand pounds stock or other securities for money borrowed for the purposes of the water undertaking which on the thirty-first day of March one thousand nine hundred are properly charged (whether exclusively or otherwise) on the water undertaking or the revenue thereof shall continue to be charged on the said undertaking or the revenue thereof as the case may be to the like extent and with the like priorities as if this Act had not been passed and the said sum of ninety thousand pounds stock and all annuities and all mortgages or other securities for money borrowed by the Bury Corporation for the purposes of the water undertaking charged and owing on the thirty-first day of March one thousand nine hundred shall as from the said thirty-first day of March one thousand nine hundred and the dividends annuities and interest thenceforth accruing be taken

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over by and transferred to the Board together with all liabilities of the corporation in respect of the same and shall be charged on the water undertaking and on all rates and moneys which the Board are by this Act authorised to levy raise or collect or cause to be levied raised or collected within the respective water supply districts of the constituent authorities.

29. From and after the thirty-first day of March one thousand nine hundred all Bury Corporation Redeemable Stock created and issued under the provisions of the Bury Improvement Act 1885 except the said sum of ninety thousand pounds like stock transferred to the Board under the provisions of this Act shall cease to be charged on the water undertaking or the revenue thereof.

Bury Corpora-
tion stock
except ninety
thousand
pounds part
thereof to
cease to be
a charge on
water under-
taking.

30. From and after the thirty-first day of March one thousand nine hundred the said sum of ninety thousand pounds stock shall be designated as "the Bury and District Joint Water Board (three pounds ten shillings per centum) Redeemable Stock" and the Board are hereby authorised to exercise the powers and provisions contained in Part XV. of the Bury Improvement Act 1885 with respect to such stock as if the same were herein set forth mutatis mutandis. Provided that the Joint Board shall have no power to issue any further stock for waterworks purposes under the said Act of 1885.

Transferred
stock.

31. As from the said thirty-first day of March one thousand nine hundred the annuities interest on mortgages and the dividends on the said sum of ninety thousand pounds stock payable by the Board shall be paid at the office of the Board clear of all deductions except income tax but the Board may transmit by post warrants for such annuities interest and dividends under and by virtue of the powers contained in the scheduled Acts.

Payment of
annuities
&c.

32. All sum or sums which should on the thirty-first day of March one thousand nine hundred be standing to the credit of the loans fund and sinking funds established by the Bury Corporation to extinguish water annuities and for the repayment of moneys borrowed for waterworks purposes or the securities in which the same are invested shall be forthwith paid or transferred by the Bury Corporation to the Board and shall be carried by the Board to the credit of the loans fund and sinking funds to be established by the Board under the provisions of this Act.

Transfer of
sums to new
sinking fund.

33. In the event of the revenue of the water undertaking proving at any time insufficient to meet all payments properly chargeable to revenue—

Provisions
for payment
of deficiency
in water
revenue.

(a) The Board are hereby authorised and required in every such case forthwith to ascertain and determine the amount of such

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deficiency and to apportion the same between the several constituent authorities;

- (b) The amount of the deficiency shall be apportioned between the several constituent authorities in the proportions which the amount received by the Board during the preceding financial year for water supplied (within the limits of supply) for domestic purposes within the respective districts of the constituent authorities shall bear to the total amount received for water so supplied by the Board within the whole of the districts of all the constituent authorities;
- (c) The amount of the deficiency ascertained and determined by the Board to be payable by the Bury Corporation shall be apportioned by the Bury Corporation between the areas added to the borough of Bury by the Bury Improvement Act 1885 (herein-after referred to as "the Bury added areas") and the rest of the borough of Bury in the proportions which the respective amounts received by the Board for water supplied by the Board for domestic purposes within the Bury added areas and the rest of such borough respectively shall bear to the total amount received by the Board for water so supplied within the whole of such borough;
- (d) The Bury Corporation are hereby authorised and empowered within the Bury added areas to raise by means of a rate to be assessed upon the like property and to be made levied and collected in like manner and with the like powers and authorities as the Bury general rate the proportion of the deficiency ascertained as aforesaid to be payable by the Bury added areas;
- (e) The Board shall issue precepts to the constituent authorities for the amounts so respectively apportioned and the constituent authorities shall within two months from the receipt of such precepts pay to the Board the amount so apportioned to them respectively;
- (f) Such amounts respectively shall be paid by the Bury Corporation out of the Bury general rate and the said rate authorised to be levied and raised by the Bury Corporation in the Bury added areas as aforesaid and by the other constituent authorities (except the Bury Rural Council) out of their respective district funds and general district rates or other rates applicable for defraying such payments and by the Bury Rural Council out of moneys to be raised in the contributory places within the limits of supply by rates to defray special expenses therein and the contributions of the Bury Rural Council toward such deficiencies shall be apportioned by such rural council

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amongst such contributory places in like manner as provided in subsection (b) of this section which respective funds and rates are hereby charged with the payment of the same accordingly and the constituent authorities respectively are hereby authorised and required to make and levy any rate and precept that may be necessary for the purposes aforesaid ;

(g) If any constituent authority fails to pay any amount so apportioned within the time aforesaid the same shall be a debt due to the Board from such constituent authority and shall bear interest till payment at the rate of five pounds per centum per annum and the Board may in addition to all other remedies proceed for recovery thereof in either of the modes following (that is to say) :—

(A) The Board may sue the defaulting authority for the amount unpaid in any court of competent jurisdiction ;

(B) The Board may by precept empower some officer of the Board to raise by means of a rate to be assessed upon the like property and to be made levied and collected in like manner and with the like powers and authorities as the Bury general rate the general district rate or other rate of the defaulting authority such sum (the amount to be specified in the precept) as in the opinion of the Board will be sufficient to pay the amount so apportioned and interest and all expenses incurred in consequence of the non-payment thereof and the expenses of levying and collecting such rate and any officer of the Board so empowered shall have the like powers of assessing making levying and collecting rates and of issuing precepts and of requiring officers of the defaulting authority to account as the defaulting authority would have under any Act or otherwise and the officer of the Board so empowered after paying all money payable under the precept shall pay any residue of the money received by him (the amount to be ascertained by the Board) to the defaulting authority.

34. The Board shall pay to the Bury Corporation at the times and in manner herein-after mentioned as part of the consideration for the purchase of the water undertaking by the Board the several sums paid from time to time by the Bury Corporation with interest thereon viz. :—

Sums to be paid to the Bury Corporation for the purchase of the water undertaking.

(1) For amounts contributed to the waterworks undertaking from the general rate for loans fund and sinking funds with interest thereon to the thirty-first day of March one thousand nine hundred the sum of one hundred thousand five hundred and

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sixty-three pounds two shillings and sevenpence (herein-after referred to as "the capital sum due on sinking fund account") :

- (2) For amounts contributed to make good the deficiencies in the revenue of the water undertaking including sums contributed from the public water rate of Bury with interest thereon at the rate and to the date aforesaid the sum of forty-eight thousand six hundred and twelve pounds fourteen shillings and fivepence (herein-after referred to as "the capital sum due on revenue account").

Provisions
for repay-
ment of
capital sum
due on sink-
ing fund
account.

35. The Board shall pay to the Bury Corporation the capital sum due on sinking fund account with interest thereon at the rate of three pounds per centum per annum from the thirty-first day of March one thousand nine hundred to the date of payment within three months from the date of the first meeting of the Board or at the option of the Board such capital sum or any part thereof may remain unpaid on the terms and conditions following (that is to say) :—

- (a) If the said capital sum or any part thereof shall not be paid by the Board to the Bury Corporation at the date herein-before mentioned the Board shall pay annually to the Bury Corporation interest at the rate aforesaid on the amount of the said capital sum or on such part thereof as shall then remain unpaid :
- (b) The Bury Corporation may call in or the Board may pay off the said capital sum or such part thereof as shall then remain unpaid on giving six months' previous notice in writing to the other of them of their intention so to do :
- (c) The said capital sum or such part thereof as shall remain unpaid together with interest thereon at the rate aforesaid shall be a charge until repayment on the water undertaking subject only to the liabilities on that undertaking set forth in the Fourth Schedule hereto.

If the Board shall not repay the capital sum due on sinking fund account within three months from the first meeting of the Board the Board shall from the date when such capital sum became payable make provision for the redemption of such capital sum and the provisions of this Act as to repayment and re-borrowing of moneys borrowed thereunder shall apply to the amount of such capital sum as if the said amount were a loan obtained under section 47 (1) (a) of this Act.

Amount
owing on the
capital sum
due on revenue
account

36. The capital sum due on revenue account with compound interest at the rate of three pounds per centum per annum with yearly rests is hereby charged on the water undertaking subject as

herein-before set forth and the same shall be repaid to the Bury Corporation out of the revenue of the water undertaking in manner herein-after provided. A.D. 1900.

37. All moneys when received by the Bury Corporation on account of the capital sum due on sinking fund account and the capital sum due on revenue account shall be distinguished as capital in the accounts of the Bury Corporation and shall be applied in repayment of any debt of the Bury Corporation or with the approval of the Local Government Board to such capital purposes as the Bury Corporation may determine.

charged on the
water under-
taking.

Application
of moneys
received on
capital
account by
the Bury
Corporation.

38. The Board shall apply the revenue of the water undertaking in the following order:—

Application
of water
revenue.

(1) In payment of the working and establishment expenses and costs of maintenance of the water undertaking and the costs of collection and recovery of water rents and charges :

(2) In payment of the annuities and interest on the sums set forth in the Fourth Schedule to this Act and the dividends on the said sum of ninety thousand pounds stock :

(3) In payment of the interest on the amount found due from the Board to the Bury Corporation for the capital sum due on sinking fund account :

(4) In payment of the interest or dividends upon money borrowed under the unexhausted borrowing powers of the scheduled Acts and this Act :

(5) In providing for instalments or sinking funds to repay and extinguish moneys annuities and stock borrowed or created for the purposes of the water undertaking under the powers of the scheduled Acts or this Act :

(6) In repayment to the constituent authorities of the amounts paid by them to make good any deficiency in revenue which may have theretofore been met by such authorities with compound interest at three pounds per centum per annum with yearly rests :

(7) In repaying to the Bury Corporation the amount of the capital sum due on revenue account with compound interest at the rate aforesaid with yearly rests :

(Lastly) The surplus (if any) shall be applied in reduction of the charge for water for domestic purposes when and as circumstances shall permit the same to be done :

The amount from time to time paid to the constituent authorities on account of the amounts found by them to make good deficiency in revenue shall be apportioned between the several constituent

A.D. 1900. — authorities in the same proportions in which such amounts were originally found by them and shall be paid to the constituent authorities respectively and by them carried as to the Bury Corporation to the credit of the Bury general fund and as to the remainder of the constituent authorities to the credit of their respective general district funds and district rates or other rates out of which the amounts were originally raised.

No reduction shall be made in the water rate without consent of Board &c.

39. No reduction shall be made in the rate charged at any time by the Board for water for domestic supply until the Board shall have repaid to the constituent authorities all sums due to them for making good any deficiency in revenue and the whole of the amount payable to the Bury Corporation on the capital sum due on revenue account except by an unanimous resolution of the Board at a meeting specially called for that purpose. Provided nevertheless that any reduction rebate or allowance by way of discount which the Board are hereby authorised to make on a resolution passed by three fourths of the members of the Board present at a meeting specially called for the purpose shall not be deemed a reduction in the rate so charged for water for domestic supply as aforesaid.

Fixing price of water used for fire and other purposes.

40. Within six months after the first meeting of the Board and at any time thereafter the price to be paid for the supply of water for security against fire for fire brigade practices for watering streets flushing sewers for baths and other public purposes and for other sanitary uses within the water supply limits of the Board shall be fixed by the Board and such price per thousand gallons shall be one and the same throughout such limits anything in the scheduled Acts to the contrary notwithstanding.

Appointment of officers.

41. The existing officers and servants solely employed by the Bury Corporation in connexion with the water undertaking shall continue to be employed by the Board in their several offices and employment but subject to such power of removal as they would have been subject to if this Act had not passed.

The existing officers partly employed by the Bury Corporation in connexion with the water undertaking namely "the town clerk" and "the borough treasurer" shall be respectively employed by the Board as "clerk" and "treasurer" thereof at salaries or remuneration and upon such other terms as shall be agreed upon between the Board and those respective persons or failing agreement as shall be determined by arbitration in the manner provided by section 20 of this Act.

42. The Board shall have and may exercise all the powers rights and privileges exercisable by or attached to the Bury Corporation under the scheduled Acts or otherwise in respect of the water undertaking and the Board shall also within their limits of supply have and may exercise all the powers rights and privileges of an urban district council with respect to the construction and maintenance of waterworks and the supply of water.

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General
powers of
Board.

43. Section 176 (Regulations as to purchase of land) and section 303 (Power to repeal and alter Local Acts) of the Public Health Act 1875 shall extend and apply to and may be put in force by the Board as if they were a local authority within the meaning of those sections and the Local Government Board may make such Orders as they are by those sections empowered to make on the petition or application of a local authority.

Extension
of sections
176 and 303
of Public
Health Act
1875 to
Board.

44. The Board shall not under the powers of this Act purchase or acquire ten or more houses which on the fifteenth day of December last were occupied either wholly or partially by persons belonging to the labouring class as tenants or lodgers or except with the consent of the Local Government Board ten or more houses which were not so occupied on the said fifteenth day of December but have been or shall be subsequently so occupied.

Restriction
on taking
houses of
labouring
class.

If the Board acquire or appropriate any house or houses for the purposes of this Act in contravention of the foregoing provisions they shall be liable to a penalty of five hundred pounds in respect of every such house which penalty shall be recoverable by the Local Government Board by action in the High Court and shall be carried to and form part of the Consolidated Fund of the United Kingdom Provided that the Court may if it think fit reduce such penalty.

For the purposes of this section—

The expression "labouring class" means and includes mechanics artisans labourers and others working for wages hawkers costermongers persons not working for wages but working at some trade or handicraft without employing others except members of their own family and persons other than domestic servants whose income does not exceed an average of thirty shillings a week and the families of any of such persons who may be residing with them The expression "house" means any tenement separately occupied by any person or persons.

45. The Board may on the application of the owner or occupier of any premises within the water limits abutting on or being

Power to
lay pipes in
streets not

A.D. 1900.

dedicated to
public use.

erected in any street laid out but not dedicated to public use supply such premises with water and may lay down take up alter relay or renew in across or along such street such pipes and apparatus as may be requisite or proper for the furnishing such supply.

FINANCIAL AND MISCELLANEOUS PROVISIONS.

Board may
exercise the
unexhausted
borrowing
powers of
Bury Corpo-
ration for
waterworks
purposes.

46. The Board may and they are hereby authorised and empowered to borrow at interest all capital sums of money which by the scheduled Acts the Bury Corporation are authorised to borrow for waterworks purposes and which shall not already have been borrowed and raised by the Bury Corporation and subject to the provisions of this Act the provisions of the scheduled Acts shall apply to such loans as if the name of the Board had been inserted in those Acts instead of the name of the Bury Corporation.

Power to
borrow.

47.—(1) The Board may in addition from time to time borrow at interest money for the following purposes (that is to say):—

- (a) The amount payable to the Bury Corporation on the capital sum due on sinking fund account ;
- (b) For paying the costs and expenses of this Act as herein-after provided the sum requisite for that purpose.

(2) In order to secure the repayment of the moneys borrowed under the scheduled Acts and this section and the payment of the interest thereon the Board may mortgage or charge the water undertaking and all rates and moneys which they are authorised to levy raise or collect or cause to be levied raised or collected within the respective water supply districts of the constituent authorities.

Mode of
raising
money.

48. The Board may raise all or any moneys which they are authorised to borrow under the scheduled Acts and this Act by mortgage under and subject to the provisions of the Local Loans Act 1875 and the revenue of the water undertaking and all rates and moneys which they are authorised to levy raise or collect or cause to be levied raised or collected shall be deemed to be the local rate as defined by the said Act Provided that the provisions contained in the sections of this Act whereof the marginal notes are "Sinking fund" and "Annual return to Local Government Board" shall apply to sinking funds formed for the repayment of moneys borrowed under the Local Loans Act 1875 instead of the provisions of sections 15 and 16 of that Act.

49. Sections 236 to 238 of the Public Health Act 1875 (as to the form register and transfer of mortgages) shall extend and apply to mortgages granted under the scheduled Acts and this Act.

A.D. 1900.

Provisions of
Public Health
Act as to
mortgages to
apply.

50. The Board shall pay off all moneys borrowed by them under this Act within the respective periods (in this Act referred to as "the prescribed periods") following (that is to say) :—

Periods for
repayment
of money
borrowed.

As to moneys borrowed for the purpose (a) mentioned in the section of this Act the marginal note whereof is "Power to borrow" within sixty years from the date or dates of the borrowing of the same ;

As to moneys borrowed for the purpose (b) in the said section mentioned within five years from the date or dates of the borrowing of the same.

51. The Board shall pay off all moneys borrowed by them on mortgage under the powers of the scheduled Acts or of this Act either by equal yearly or half-yearly instalments of principal or of principal and interest combined or by means of a sinking fund or partly by one of these methods and partly by another or others of them and the payment of the first instalment or the first payment to the sinking fund shall be made within one year from the time of borrowing the sum in respect of which the payment is made.

Mode of
payment off
of money
borrowed.

52.—(1). If the Board determine to repay by means of a sinking fund any moneys borrowed by virtue of the scheduled Acts or of this Act such sinking fund shall be formed and maintained either—

Sinking
fund.

(a) By payment to the fund throughout the prescribed period of such equal annual sums as will together amount to the moneys for the repayment of which the sinking fund is formed. A sinking fund so formed is herein-after called a non-accumulating sinking fund ; or

(b) By payment to the fund throughout the prescribed period of such equal annual sums as with accumulations at a rate not exceeding three per centum per annum will be sufficient to pay off within the prescribed period the moneys for the repayment of which such sinking fund is formed. A sinking fund so formed is herein-after called an accumulating sinking fund.

(2) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest of the investments of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in statutory securities the Board being at liberty from time to time to vary and transpose such investments.

A.D. 1900.

(3) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the Board towards the equal annual payments to the fund.

(4) The Board may at any time apply the whole or any part of any sinking fund in or towards the discharge of the money for the repayment of which the fund is formed. Provided that in the case of an accumulating sinking fund the Board shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by such sinking fund so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

(5) —(a) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any deficiency shall be made good by the Board ;

(b) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any such excess may be applied towards such annual payments.

(6) Any expenses connected with the formation maintenance investment application management or otherwise of any sinking fund under this Act shall be paid by the Board in addition to the payments provided for by this Act.

(7) If it appears to the Board at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Act together with the accumulations thereon (in the case of an accumulating sinking fund) will probably not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Board to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose. Provided always that if it appears to the Local Government Board that any such increase is necessary the Board shall increase the payments to such extent as the Local Government Board may direct.

(8) If the Board desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(9) If the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Act together with the accumulations thereon (in the case of an accumulating sinking

fund) will in the opinion of the Local Government Board be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Board may reduce the payments to be made to the sinking fund either temporarily or permanently to such amounts as will in the opinion of the Local Government Board be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed. A.D. 1900.

(10) If the amount in any sinking fund at any time together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Local Government Board be sufficient to repay the loan in respect of which it is formed within the prescribed period the Board may with the consent of that Board discontinue the annual payments to such sinking fund until the Local Government Board shall otherwise direct.

(11) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose as the Board with the consent of the Local Government Board may determine.

53. A person lending money to the Board under this Act shall not be bound to inquire as to the observance by the Board of any provisions of this Act or be bound to see to the application or be answerable for any loss misapplication or non-application of the money lent or of any part thereof. Protection of
lender from
inquiry.

54. The Board shall not be bound to see to the execution of any trust whether express implied or constructive to which any loan or security for loan given by them may be subject but the receipt of the person in whose name any loan or security for loan stands in the register of stock or mortgages of the Board shall be sufficient discharge to the Board in respect thereof notwithstanding any trusts to which such loan or security may be subject and whether or not the Board have had express or implied notice of any such trust or of any charge or incumbrance upon or transfer of such loan or security or any part thereof or interest thereon not entered in their register. Board not
to regard
trusts.

55. The mortgagees of the Board by virtue of the scheduled Acts or of this Act may enforce the payment of arrears of interest or of principal or of principal and interest by the appointment of a receiver In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than five Appointment
of receiver.

A.D. 1900.

hundred pounds in the whole. The application for the appointment of a receiver shall be made to the High Court.

Power to
re-borrow.

56. If the Board pay off any moneys borrowed by or transferred to them under the scheduled Acts or this Act otherwise than by instalments or by means of a sinking fund or out of the proceeds of the sale of land or other property or out of fines or premiums on leases or out of other moneys received on capital account not being borrowed moneys, they may re-borrow the same but all moneys so re-borrowed shall be repaid within the prescribed period and shall be deemed to form the same loan as the moneys originally borrowed and the obligations of the Board with respect to the repayment of the loan and to the provision to be made for such repayment shall not be diminished by reason of such re-borrowing.

Borrowing
powers for
current
expenses.

57. In order to raise such money as may be necessary to defray the current annual expenditure of the Board until their revenues shall be collected the Board may borrow during the currency of any financial year in addition to the other sums authorised to be borrowed on the security of such revenues any sum or sums not exceeding in the whole one half of the approximate amount of such revenues for the year then current from any bank or banking company or other company or person on such terms and conditions and in such form as may be agreed on between the parties. Provided always that sums so borrowed shall be paid off and extinguished at or before the end of the then current year.

Certain
regulations
of Public
Health Act
not to apply.

58. The powers of borrowing money given to the Board by this Act shall not be restricted by any of the regulations contained in section 234 of the Public Health Act 1875 and in calculating the amount which each constituent authority may borrow under that Act any sums which they are liable for under this Act shall not be reckoned.

Annual
return to
Local
Government
Board.

59.—(1) The treasurer of the Board shall within twenty-one days after the thirty-first day of March in each year during which any sum is required to be paid as an instalment or annual payment or to be appropriated or to be paid to a sinking fund in pursuance of the provisions of the scheduled Acts or of this Act transmit to the Local Government Board a return in such form as may from time to time be prescribed by that Board and if required by that Board verified by statutory declaration showing for the year next preceding the making of such return or for such other period as the Board may prescribe the amounts which have been paid as instalments or annual payments and the amounts which have been appropriated and the amounts which have been paid to or invested or applied for

the purpose of the sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment of the sum accumulated by way of compound interest has been applied during the same period and the total amount (if any) remaining invested at the end of the year and in the event of any wilful default in making such return the treasurer shall be liable to a penalty not exceeding twenty pounds to be recovered by action on behalf of the Crown in the High Court.

A.D. 1900.

(2) If it appear to the Local Government Board by that return or otherwise that the Board have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required by the scheduled Acts or by this Act for any sinking fund or have applied any portion of any sinking fund to any purposes other than those authorised the Local Government Board may by order direct that the sum in such order mentioned not exceeding double the amount in respect of which default shall have been made shall be paid or applied as in such order mentioned and any such order shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court and the provisions of this section shall apply mutatis mutandis to appropriations and annual repayments.

60. All moneys borrowed by the Board under the powers of this Act shall be applied only to the purposes for which they are authorised to be borrowed and to which capital is properly applicable.

Application
of money
borrowed.

61. The proceeds of the sale of any surplus lands of the Board and all moneys received by them by way of fine or premium on any lease and other receipts in the nature of capital other than borrowed moneys shall be distinguished as capital in the accounts of the Board and shall be applied in discharge of moneys borrowed by the Board but shall not be applied in the payment of instalments or to payments into the sinking fund except to such extent and upon such terms as may be approved by the Local Government Board.

Application
of moneys
arising from
sale &c. of
lands.

62. The accounts of the receipts and expenditure of the Board shall be made up to the end of each financial year ending on the thirty-first day of March.

Accounts of
Board.

63. The accounts of the Board shall be audited by chartered accountants appointed from time to time by the Board and such accounts shall (so far as the circumstances will admit) be audited examined and published in like manner as accounts of the Bury

Audit of
accounts of
Board.

A.D. 1900. Corporation are now audited examined and published under the Municipal Corporations Act 1882 A copy of the chartered accountants' report and of the abstract of accounts when duly audited shall be sent by the clerk to the Board to the Local Government Board and to the clerk of each of the constituent authorities.

Board may
issue stock.

64. The Board shall be deemed to be an urban authority within the meaning of Part V. of the Public Health Acts Amendment Act 1890 and to have adopted that part of the Act and the Board may exercise their borrowing powers by the creation and issue of stock in the manner by that Act provided and subject to the provisions therein contained.

Costs of Act.

65. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Board out of the moneys to be borrowed by them under the powers of this Act Provided nevertheless such costs charges and expenses or any portion thereof may in the first instance be paid by the Bury Corporation out of the revenue of the water undertaking in which event the Board shall subsequently refund to the revenue of the said undertaking the amount paid thereout for costs charges and expenses out of the moneys to be borrowed by the Board under the powers of this Act.

SCHEDULES referred to in the above Act.

A.D. 1900.

THE FIRST SCHEDULE.

The Bury and Radcliffe Waterworks Act 1853.

The Bury and Radcliffe Waterworks Amendment Act 1858.

The Haslingden and Rawtenstall Waterworks Acts 1853 1856 1858 and 1864.

The Bury Improvement Act 1872.

The Bury Improvement Act 1885.

The Bury Corporation Waterworks Act 1889.

The Bury Corporation Act 1894.

The Bury Corporation Water Act 1899.

THE SECOND SCHEDULE.MEETINGS AND PROCEEDINGS OF BOARD.

1. The annual and other meetings of the Board shall be held on such days and at such times as the Board may from time to time appoint. Meetings of the Board.

2. The chairman may at any time call a meeting. If the chairman refuses to call a meeting after a requisition for that purpose signed by four members of the Board has been presented to him the clerk shall on the requisition of any four members of the Board forthwith on that refusal call a meeting. If the chairman (without so refusing) does not within seven days after such presentation call a meeting the clerk shall on the requisition of any four members of the Board on the expiration of those seven days call a meeting. Summoning meetings.

3. Three clear days at least before any meeting of the Board a summons to attend the meeting signed by the clerk of the Board shall be left or delivered by post at the usual place of abode of every member of the Board. Want of service of the summons on any member of the Board shall not affect the validity of the meeting. Notice of meetings.

4. To constitute a meeting of the Board there must be at least seven members present. Quorum.

5. The chairman of the Board or in his absence the vice-chairman of the Board shall be the chairman at every meeting. If neither of them is present Chairman of meetings.

A.D. 1900. at the time appointed for the meeting the members then present shall choose another of the members to be chairman of that meeting.

Decision of
questions at
meetings.

6. All acts of the Board and all questions coming or arising before the Board may be done and decided by the majority of such members of the Board as are present and vote at a meeting held in pursuance of this Act except as in this Act otherwise provided.

In case of equality of votes the chairman of the meeting shall have a second or casting vote.

Minutes.

7. Minutes of the proceedings of every meeting shall be drawn up and fairly entered in a book kept for that purpose and shall be signed by the chairman of the meeting or of the next ensuing meeting.

Subject to the foregoing provisions of this schedule the Board may from time to time make standing orders for the regulation of their proceedings and business and vary or revoke the same.

THE THIRD SCHEDULE.

A.D. 1900.

LIST OF HOLDERS OF £90,000 BURY CORPORATION REDEEMABLE
STOCK ALLOCATED TO THE WATER UNDERTAKING.

No. of Certificate.	Name.	Amount.
001	Acton Thomas - - - - -	£ 300
002	Acton Wm. and another - - - - -	100
003	Ashworth Michael and another - - - - -	700
005	Broughton Alice Mrs. - - - - -	200
006	Booth Eli - - - - -	300
008	Butterworth Alice Mrs. - - - - -	2,300
009	Shaw Mary Ann - - - - -	250
011	Chadwick Thomas - - - - -	200
012	Bate Edward and others - - - - -	250
013	Crossley Elizabeth Mrs. - - - - -	200
021	Salmon Arthur and others - - - - -	600
023	Haworth Alice Miss - - - - -	350
026	Hall Amelia Robina Mrs. - - - - -	3,100
027	Holt James and others - - - - -	300
030	Harper Ann Miss - - - - -	200
040	Lord William - - - - -	700
043	Mitchell Henrietta Augusta Miss - - - - -	1,950
050	Pilling John - - - - -	700
051	Cook Sarah Mrs. - - - - -	10,200
052	Pilkington John - - - - -	200
054	Pomfret Betty Mrs. - - - - -	250
058	Roberts Thomas - - - - -	1,050
	Carried forward - - - - -	£ 24,400

A.D. 1900.

No. of Certificate.	Name.	Amount.
	Brought forward - - -	£ 24,400
060	Ramsbotham Emma Mrs. and another - - -	1,000
063	Rigby Mary Mrs. - - -	250
064	Roberts Anne Miss - - -	800
066	Hudson Richard and others - - -	600
067	Sykes William - - -	800
068	Sykes William and another - - -	1,300
069	Simpson Peter Hardman - - -	1,300
072	Roberts Robert K. and others - - -	200
074	Haslam Dennis and others - - -	500
077	Sill Elizabeth - - -	350
079	Thorpe Mary Mrs. - - -	300
081	Tattersall Sarah Mrs. - - -	500
082	Tattersall Sarah Miss - - -	500
083	Sumner Edwin - - -	400
085	Woodcock Hannah and others - - -	600
087	Woodcock Hannah - - -	700
088	Wood Warwick - - -	1,050
090	Wood Nancy Mrs. - - -	200
094	Rawson Mary - - -	200
097	Alcock Florence Miss - - -	1,000
099	Aitken Thomas and another - - -	1,050
102	Ryder Thomas and others - - -	1,400
105	Hallpike Thomas and others - - -	200
109	Walker William and others - - -	250
111	Carter Thomas E. - - -	100
113	Crossley Elizabeth Miss - - -	200
114	Crossley Ann Miss - - -	200
	Carried forward - - -	£ 40,350

A.D. 1900.

No. of Certificate.	Name.	Amount.
	Brought forward - - - - -	£ 40,350
117	Cherry Sarah Miss - - - - -	200
121	Dennis Cammack - - - - -	1,000
122	Duxbury Margaret Miss - - - - -	150
123	Denton Nancy Mrs. - - - - -	150
124	Farrar James - - - - -	800
132	Hoyle Margaret Mrs. - - - - -	100
133	Holt Thomas and another - - - - -	50
143	Hill Mary Miss - - - - -	100
146	Hill Frederick - - - - -	150
159	Mills Henry - - - - -	300
163	Openshaw Sarah Miss - - - - -	500
176	Rawson Jeremiah - - - - -	500
181	Rothwell Richard Executors (per Mrs. Ellen Rothwell)	1,300
182	Hall Ellen Mrs. - - - - -	600
188	Hall Jesse and others - - - - -	300
193	Speak Alfred and others - - - - -	2,550
203	Wright William and another - - - - -	250
204	Walmsley Sarah Helen Mrs. - - - - -	1,100
206	Wike James and another - - - - -	200
210	Aitken Thomas - - - - -	400
211	Rigby John Kay and others - - - - -	500
213	Wild Harry and others - - - - -	1,000
216	Dakeyne Mary Miss - - - - -	250
220	Farrar James - - - - -	400
221	Heaton Elizabeth Miss and others - - - - -	300
226	Rothwell Richard Executors - - - - -	350
228	Pickup James - - - - -	100
	Carried forward - - - - -	£ 53,950

A.D. 1900.

No. of Certificate.	Name.	Amount.
	Brought forward	£ 53,950
232	Rothwell Richard Executors (per Mrs. Ellen Rothwell)	500
236	Hudson R. P. and others	350
237	Seddon Sarah Ann Mrs.	1,500
246	Haworth Robert	100
247	Carnes Sarah Ann Mrs.	100
248	Wilson Jane Mrs.	100
250	Cherry Sarah Miss	50
251	Maden Ann Mrs.	500
254	Spencer Alice Mrs.	50
258	Walker Oliver Ormerod	15,600
259	Rothwell Richard Executors (per Mrs. Ellen Rothwell)	3,000
275	Hill Wm. and another	1,200
278	Wild Sarah Jane Miss	100
287	Kay George Alfred	500
288	Hall John and others	300
289	Hall John and others	7,550
298	Hesketh John	400
300	Hamer Alice Ann Mrs.	1,000
309	Taylor John	200
313	Maden James Henry	1,200
317	Ormerod William Edward	300
318	Ormerod Mary Miss	450
320	Grundy Robert and another	200
333	Hall John and others	300
344	Yates George	500
		£ 90,000

THE FOURTH SCHEDULE.

BORROWING POWERS AND INDEBTEDNESS IN RESPECT OF WATER UNDERTAKING.

Acts of Parliament and Sanctions.	Purposes.	Amounts authorised to be borrowed.	Period allowed for payment.	Amounts borrowed.	Amounts remaining unborrowed.	Amounts repaid by means of Sinking Fund.	Indebtedness 31st March 1900.				Amounts in Sinking Fund or Loans Fund.	Net indebtedness 31st March 1900.
							Mortgages.	Redeemable Stock.	Annuities.	Total.		
Bury Improvement Acts 1872 and 1885.	Waterworks	£ s. d. 189,955 0 0	80 years from 1872.	£ s. d. 189,955 0 0	£ s. d. —	£ s. d. 71,360 13 10	£ s. d. 33,844 6 2	£ s. d. 84,750 0 0	£ s. d. —	£ s. d. 118,594 6 2	£ s. d. 3,583 11 1	£ s. d. 115,010 15 1
Bury Improvement Act 1872 annuities amounting in the aggregate to 17,370l. 2s. 5d. on purchase of waterworks.	Waterworks	521,103 12 6	—	521,103 12 6	—	—	—	—	521,103 12 6	521,103 12 6	3,533 5 11	517,565 6 7
Bury Corporation Water Act 1889.	Waterworks	130,000 0 0	60 years	130,000 0 0	—	3,710 10 3	121,039 9 9	5,250 0 0	—	126,289 9 9	1,011 12 0	125,277 17 9
Bury Corporation Water Act 1889.	Cost of Act	3,343 13 6	20 years	3,343 13 6	—	1,068 7 2	2,275 6 4	—	—	2,275 6 4	157 11 5	2,117 14 11
Bury Corporation Water Act 1899.	Waterworks	403,000 0 0	60 years	74,856 6 10	323,143 13 2	—	74,856 6 10	—	—	74,856 6 10	15 14 2	74,840 12 8
Bury Corporation Water Act 1899.	Cost of Act	5,979 6 1	10 years	—	5,979 6 1	—	—	—	—	—	—	—
		£ 1,253,381 12 1	—	919,258 12 10	334,122 19 8	76,139 11 3	232,015 9 1	90,000 0 0	521,103 12 6	843,119 1 7	8,306 14 7	834,812 7 0

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